

Gayatri Devi v. State of U.P.

Allahabad High Court · Division Bench · 17 December 2018 · Writ-C No. 41608 of 2018 · **Writ disposed; relegated to clause 6.5 before Executive Engineer.**

HEADNOTE

A writ challenging the correctness of an electricity bill was not entertained because clause 6.5 of the U.P. Electricity Supply Code, 2005 supplies a statutory objection before the Executive Engineer. The Court disposed of the petition with a direction that if the consumer applied within ten days, the authority should decide the application by a speaking order after hearing, within fifteen days.

FACTUAL SUMMARY

Gayatri Devi petitioned the Allahabad High Court to quash an electricity bill dated 9 October 2018 for Rs. 40,407 and for a mandamus directing respondent no. 3 to correct the bill according to law and to permit deposit of the corrected amount in part payment. The petition raised a dispute as to the correctness of the bill. Counsel for the petitioner and for the Electricity Department were heard, and the record was perused.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill-correctness dispute — statutory objection to Executive Engineer

HOLDING

A writ petition raising a dispute as to the correctness of an electricity bill will not be entertained where the consumer has the statutory remedy of approaching the Executive Engineer under clause 6.5 of the U.P. Electricity Supply Code, 2005; if the consumer so applies, the authority is to consider and decide the application in accordance with law by a speaking order after hearing. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5

A writ challenging the correctness of an electricity bill was not entertained because clause 6.5 of the U.P. Electricity Supply Code, 2005 supplies a statutory objection before the Executive Engineer.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL DATED 9.10.2018 FOR RS. 40,407, AND THE PRAYER TO DEPOSIT IN PART PAYMENT

Writ not decided on merits; consumer relegated to clause 6.5. ¶ 1